

S.N. Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 January 2019 · WRIT - C No. 2681 of 2019 · **Writ dismissed; CGRF directed to decide pending 7.10 application expeditiously.**

HEADNOTE

A writ seeking quashing of an electricity demand notice is not maintainable as a parallel proceeding where the consumer has already invoked Para 7.10 of the Electricity Supply Code, 2005 and is pursuing the grievance before the Consumer Grievance Redressal Forum. The Forum was directed to decide the pending application in accordance with law, preferably within two months.

FACTUAL SUMMARY

S.N. Singh filed a writ petition in the Allahabad High Court seeking quashing of a demand notice dated 4 December 2018. He disputed electricity bills issued to him from time to time and alleged that a bill of Rs. 33,31,974 was highly inflated. He had already submitted an application dated 14 January 2019 under Para 7.10 of the Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum, Kanpur, registered as Case no. 1 of 2019, and was pursuing that remedy when he invoked the writ jurisdiction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

parallel writ while CGRF seized under 7.10

HOLDING

A writ petition seeking quashing of an electricity demand notice is not maintainable as a parallel proceeding where the petitioner has already invoked Para 7.10 of the Electricity Supply Code, 2005 and is pursuing the same grievance before the Consumer Grievance Redressal Forum. The Forum was directed to decide the pending application in accordance with law, preferably within two months of receipt of a certified copy. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Pending Para 7.10 CGRF complaint occupies the field; a parallel writ to quash the same demand is not maintainable. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 4.12.2018 AND THE BILL OF RS. 33,31,974 WERE INFLATED OR LAWFUL

Merits left to the pending CGRF Case no. 1 of 2019. ¶ 1